

UNIVERSITÀ TA' MALTA – STUDENTI TCNS

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ONOR. CLIFTON GRIMA: Ninforma lill-Onor. Interpellanta li biex studenti minn pajjiżi terzi jkunu eżentati milli jhallsu l-miżati għall-korsijiet tal-Università ta' Malta, jiddependi mill-istatus ta' residenza ta' l-istess studenti. L-informazzjoni mitluba qed titpoġġa fuq il-Mejda tal-Kamra.

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BOARD OF EXEMPTIONS OF FEES

POLICY and RULES OF PROCEDURE FOR THE EXEMPTION OF FEES OF STATE EDUCATION INSTITUTIONS

Revised 2019

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Appendices

1. The Board of Exemptions of Fees at State Education Institutions

1.1. The Board of Exemptions of Fees at State Education Institutions (thereafter the Board) is the Board appointed by the Minister responsible for Education in order to consider applications from the persons seeking exemptions from fees at State Education Institutions and to make recommendations for exemptions to the Minister responsible for Education in accordance with the provisions of Sub-article 2 of Article 126 of the Education Act (CAP 327)

1.2. The Board shall be appointed for a term not exceeding 3 years, and shall be composed of the following members:

A chairperson appointed by the Minister responsible for Education

A representative from the University of Malta

A representative from the Malta College of Arts, Science and Technology

A representative from the State Education System

A representative from the Department for Curriculum, Lifelong Learning and Employability

A representative from the Students Maintenance Grants Board (MEDE)

A representative from the Migrant Learners Unit (MEDE)

A representative from the Institute of Tourism Studies

A representative from the Identity Malta

A representative of the Refugee Commission

1.3 Representatives from Identity Malta, the Refugee Commission and the Institute for Tourist Studies, shall be appointed by the Minister responsible for Education on the advice of the respective Ministries and the Refugee Commissioner respectively;

1.4 The quorum of the Board shall be four members and decisions of the Board shall be taken by a simple majority vote. Absence from the Board meeting of any member does not invalidate any decision taken.

1.5 The Secretary to the Board shall be the head of the unit responsible for the day to day running of the application process, keeping records and perform other secretarial duties as necessary

1.6 The Secretary of the Board shall prepare the agenda in consultation with the Chairperson, takes the minutes of the proceedings, prepare the necessary documentation as well as assist the Board in its deliberations

2. State Education Institutions

2.1 No State Education Institution is empowered to exempt any student or prospective student from any fees not in accordance with the dispositions of this policy and regulation. State Education institutions are to refer to the Board all prospective students not automatically entitled for free state education;

2.2 The Board shall consider applications for exemptions from fees payable at the following educational institutions:

State Kindergarten Centres

State Primary and Secondary Schools

Giovanni Curmi Higher Secondary School

Gian Frangisk Abela Junior College

Sir Mikelang Refalo Post-Secondary Complex (Gozo)

GEM 16+

The Institute of Tourism Studies

The Malta College of Arts, Science and Technology

The University of Malta

Schools' Information System Training Centre and

Course programmes organized by the Directorate for Lifelong Learning.

3. General Conditions:

3.1 Applications for exemption of fees may be considered by the Board in favour of persons seeking study at a state educational institutions under the specific conditions and regulations stipulated in **Regulation 4: Specific Conditions** hereunder;

3.2 Notwithstanding any specific conditions stipulated under these rules and under any other law, the Board may recommend an exemption from fees to any person on humanitarian or other grounds in accordance with Sub-article 2 of Article 126 of the Education Act (CAP327);

3.3 An application for exemption of fees in accordance with regulations 3.2, may also be favourably considered:

1. if changes in the circumstances of the person concerned occur resulting in serious financial, health-related or social matters, whether such matters are personal or applicable to their family unit;
2. The applicant is a deserving student originating from a third country being a non-EU/EEA/SWISS country classified under the World Bank's lists of developing countries, low-income and low-middle-income economies, as may be updated by the World Bank from time to time; or

3. The applicant is a deserving student who has concrete future plans to work in a foreign country being a non-EU/EEA/SWISS country classified under the World Bank's lists of developing countries, low-income and low-middle-income economies, as may be updated by the World Bank from time to time:

Provided that any exemption granted to any of the above applicants shall apply to non-local rates, and any fees in terms of local rates payable by Maltese nationals shall be payable by the same persons:

4. The applicant, being a Maltese/EU/EEA/SWISS, Swiss national, requests to be exempted from any applicable fees at local rates and whose application can be considered for reasons related to serious financial, health-related or social matters, whether such matters are personal or applicable to their family unit:

Provided that in such cases, the exemption can be a partial one, and in such case any exemption so granted shall determine the percentage of the fees from which the applicant is to be exempt.

- 3.4 An exemption from fees is granted for the full registered programme. However the exemption may be revoked at any point on the grounds of change of circumstance or breach of the conditions of the exemption. For this purpose a renewal application is to be submitted each year for each beneficiary for reconsideration of the Board, taking into account any change in the circumstances of the applicant;

- 3.5 Persons in favour of whom an application for exemptions may be considered are:

1. Maltese nationals.
2. Persons being citizens of a Member State of the European Union or the European Economic Area, hereafter referred to as EU/EEA/SWISS nationals;
3. Persons being third country nationals with exempt status under the Immigration Act related to Maltese nationals;
4. Persons national of third countries being family members of EU/EEA/SWISS nationals as defined in the Free Movement of European Union Nationals and their Family Members Order 2007 (LN 191 of 2007);
5. Persons being third-country nationals not being EU/EEA/SWISS nationals;
6. Persons being family members of third country nationals as defined in the Status of Long-Term Residents (Third Country Nationals) Regulations (LN 278 of 2006);

- 3.6 In accordance with the laws quoted in these regulations, the benefit of an exemption is limited to the duration of the term specified in the respective laws.

- 3.7 Any exemption granted under these regulations unless otherwise indicated, shall apply to non-local rates, and any fees in terms of local rates payable by Maltese citizens shall be payable by non national applicants;

- 3.8 Where persons benefiting from an exemption under this article fail to proceed successfully from one year to the next, and require to repeat a year of their studies, the Board is to re-examine such persons' case and to decide whether they should maintain exemption from the payment of fees also for the year in which they are so repeating.

4. Specific Conditions for the consideration of Exemptions

4.1 Maltese Nationals

- a. Persons being Maltese nationals are entitled to free mainstream state education;
- b. Persons being Maltese nationals may submit an application for exemption where local rates are usually applicable to the course of studies concerned;
- c. In considering applications for exemption of fees due consideration is given to the economic condition of the applicant and the relevance of the proposed course to improving the wellbeing and employability of the applicant;

4.2 EU/EEA/SWISS /Swiss nationals;

- a. EU/EEA/SWISS /Swiss nationals are entitled to free mainstream state education on the same basis as Maltese nationals and are not required to submit an application for exemption of fees in state educational institutions; (Regulation 3, LN 191 of 2007 CAP 460)
- b. EU/EEA/SWISS nationals may submit an application for exemption where local rates are usually applicable to the course of studies concerned on the same basis as Maltese citizens

4.3 Exempt Persons Status (Spouse of a Maltese National)

CAP 217 Article 4

4.4 Persons being Third Country nationals with exempt status under the Immigration Act related to Maltese nationals:

- a. The applicant is a 'family member' of a Maltese national as defined in the Free Movement of European Union Nationals and their Family Members Order 2007 (LN 191 of 2007, L.N. 205 of 2004) and is thereby entitled to equal access to education in the same way as Maltese nationals. This comprises the following persons where such persons are third country nationals:
 - i. the spouse of such Maltese national
 - ii. the direct descendants of the Maltese national's spouse who are under the age of 21 or who are dependants on the Maltese national even if over the age of 21 ;
 - iii. the dependent direct relatives in the ascending line of the Maltese national's spouse who are dependents of the Maltese national or his/her spouse;

4.5 Applications from third country nationals who are partners of Maltese nationals are Considered in accordance with status conferred in the relevant domestic legislation;

4.6 Third Country Family Members of EU/EEA/SWISS nationals:

- a. Third country nationals being family members of EU/EEA/Swiss nationals are defined in the Free Movement of European Union Nationals and their Family Members Order 2007 (Regulation 2 LN 191 of 2007 CAP 460);
- b. Family members of EU/EEA/Swiss nationals shall have the same rights and conditions as EU/EEA/SWISS nationals ((Regulation 11. 2: LN 191 of 2007 CAP 460);
- b. An applicant as ‘family member’ includes the following persons where such persons are third country nationals:
 - i. the spouse of such EU/EEA/Swiss national;
 - ii. the direct descendants of the EU/EEA/Swiss national who are under the age of 21 who are dependants on the EU/EEA/Swiss national even if over the age of 21;
 - iii. the direct descendants of the EU/EEA/Swiss ’s national’s spouse who are under the age of 21 or who remain dependants on the EU/EEA/Swiss national even if over the age of 21 ;
 - iv. the dependent direct relatives in the ascending line of the EU/EEA/Swiss national; or
 - v. the dependent direct relatives in the ascending line of the EU/EEA/Swiss national’s spouse who are dependents of the EU/EEA/Swiss national or his/her spouse; or
- d. ` Applications from third country nationals who are unmarried partners of EU/EEA/SWISS nationals are considered in accordance with the status conferred in the relevant domestic legislation.

4.7. Persons being third-country nationals (not being EU/EEA/Swiss nationals)

- a. Long-term residence status :** Third country nationals granted a long-term residence permit are entitled to free state education on the same basis as a Maltese national in accordance with L.N.278 of 2006 *The Status of Long-Term Residents (Third Country Nationals) Regulations*
- b. Family members of third country nationals having long-term residence status:** A ‘family member’ of a third country national who has obtained a long-term residence permit is entitled to education as Maltese nationals in accordance with LN 150 of 2007 *The Family Reunification Regulations*. This category comprises the following family members of the third country national referred to as ‘the sponsor’:

- i. the sponsor's spouse;
- ii. the minor children of the sponsor or the spouse;
- iii. the adopted minor children of the sponsor and/or his/her spouse:
Provided that such minor children are below the age of majority set by Maltese law (18 years of age or 21 years of age if living in the same household) and unmarried;

c. Single Work Permit holder (non EU)

S.L.217.17 Regulation 23(c.)

Education and Vocational Training

Provided that as regards to payment of tuition fees and language proficiency, with respect to access to university and post-secondary education and to vocational training which is not directly linked to the specific employment activity, the specific prerequisites in national legislation shall apply.

d. Blue Card Holders (Residence of Third-Country Nationals for the purpose of Highly Qualified Employment)

S.L.217.15 Regulation 13(c)

The holder enjoys equal treatment of nationals with regard to education and vocational training

e. Permanent Residence Scheme (PRS)

S.L. 123.160 does not specify any education or training benefits (to check reference)

f. Malta Residence and Visa Programme (MRVP)

S.L.217.18 does not specify education and training

4. A certificate issued by the Malta Residence and Visa Agency in accordance with these regulations shall entitle the beneficiary of such a certificate and his registered dependants to reside, settle or stay indefinitely in Malta.

g. Malta Global Residence Programme (MGRP)

S.L. 123.148 does not specify any education or training benefits (to check reference)

h. Persons holding a residence permit on the basis of study: Persons holding a Student Residence Card (S.L. 217.09) are not entitled to exemptions from fees at state education institutions and are only considered in exceptional circumstances under regulation 3.2.

i. Refugee Status: A person granted a refugee status in Malta or is a minor child of a person granted refugee status in Malta, in accordance with the *Refugee Act* (Cap.420 of the Laws of Malta), is granted free mainstream primary and secondary state education as well as vocational education and training. (to check reference)

Persons granted Refugee Status in other countries/jurisdictions are not entitled for exemption of fees in Malta.

j. Subsidiary protection:

A person granted a subsidiary protection status in Malta or is a minor child of a person granted subsidiary in Malta, in accordance with the *Refugee Act* (Cap.420 of the Laws of

Malta), is entitled to free mainstream primary and secondary state education as well as vocational education and training. (to check reference)

k. Displaced Persons/ Temporary Humanitarian Protection:

S.L. 402.05 (LN 131 of 2005) Regulation 15(1)

The applicant is a minor or an adult who is a displaced person in terms of the *Temporary Protection for Displaced Persons (Minimum Standards) Regulations* (LN 131 of 2005) is entitled to free primary, secondary and vocational education;

l. Asylum Seeker:

S.L. 420.06 Regulation 9

A person who is seeking asylum in Malta or is a minor child of a person seeking asylum in Malta, in accordance with the *Reception of Asylum Seekers (Minimum Standards) Regulations (LN 320 of 2005)* is entitled to free mainstream primary and secondary state education as well as vocational education and training for as long as the stay in Malta

m. Failed Asylum Seekers:

S.L. 420.06 Regulation 9

A person who failed his application for asylum is to be granted, including dependent minors, free primary and a secondary as well as vocational training throughout the appeal period. A person who failed to obtain asylum is to be granted. Including dependent minors, the same free access to state education until he/she leaves the country.

n. Specific Residence Authorisation:

A person who entered Malta irregularly prior to 1 January 2016 and been physically present in Malta for a period of 5 years preceding the date of application. Applicant must have his/her application for international protection finally rejected by the relevant asylum determination authorities. Specific Residence Authorisation is to be granted to all members of the applicant's family, taking into account their educational needs and aspirations.

Persons who hold a valid Temporary Humanitarian Protection New (THPn) certificate issued by the Office of the Refugee Commissioner shall be granted Specific Residence Authorisation

o. Revocation of protection status: A person whose refugee or other protections status had been revoked is to be granted, including dependent minors, free access to state primary, secondary and vocational education until such time as he leaves the country;

5. Grant of an Exemption on the Basis of a Scholarship Agreement

5.1. The Board shall also consider applications for exemptions from applicants who are potential candidates for a scholarship or bursary at a state educational institution as a result of an bilateral agreement between the Maltese Government and another Government:

Provided that an exemption so granted shall be in accordance with the terms and conditions laid down in the said agreement

6 Miscellaneous

6.1. **Documents required with Application:** Online applications and applications sent by post are to include all the necessary documents in order to attest the status and specific conditions of the beneficiary. The duly filled in pro forma application is to have the following inclusions:

- a. A copy of the applicant's Maltese identity card (where applicable);
- b. A copy of the applicant's valid Residence permit/interim receipt issued by Identity Malta Agency, and/or the document issued by the Refugee Commission, or the Police Immigration Department (as applicable);
- c. A copy of the student's valid Residence Permit/interim receipt as issued by Identity Malta Agency, and/or the document issued by the Refugee Commission, or the Police Immigration Department (as applicable);
- d. A copy of the Spouse's/Guardian's valid Residence Permit As issued by Identity Malta Agency, and/or the document issued by the Refugee Commission, or the Police Immigration Department;
- e. A copy of any relevant certificate attesting the applicant's relation as a family member [ex. marriage and/or birth certificate (where these are registered outside Malta), etc.];
- f. Documents providing proof of the applicant's financial situation (where applicable);
- g. Any other document the Board may deem necessary in order to consider the applicant's case.

6.2 Where applications are submitted in person, the details are input electronically directly without the need to fill in the pro forma application. The original documents presented by the applicant will be verified and photocopied and will not be retained by the administration.

6.3 **Deadline for Applications:** Applications for Exemptions for will be NOT be accepted if submitted later than TWO (2) months after the commencement of the course, subject to supervening laws and regulations

6.4 Applications for Exemptions relative to more than one Programme or Course of Study:

Where a person has already benefitted from an exemption under these regulations and has completed or discontinued their studies, relevant to such previous exemption, such person is to make a fresh application for an exemption in relation to any new programme or course of studies, for which s/he requires to be exempt.

6.5 Coming into Force of Exemption Decisions

Decisions related to exemptions shall come into force on the endorsement by the Minister responsible for Education in accordance with article 126 (2) of the Education Act (Cap. 327 of the Laws of Malta) having considered the recommendations of the Board.

APPENDICES